

SERVICE AGREEMENT

This Agreement is entered into this 6th day of December, 2024 at N.Canton, Ohio by and between Delta Media Group, Inc., an Ohio corporation with its principal place of business at 7015 Sunset Strip Ave. NW North Canton, Ohio 44720 ("Delta"), and Garden Gate Realty ("Agency").

RECITALS

A. Delta offers a subscription services to real estate professionals to personalize and host websites;

B. Agency is in the business of selling real estate and providing other real estate services to the public; and

C. Agency desires to subscribe to Delta services for the benefit of Agency as agreed between the parties from time to time.

NOW, THEREFORE, in consideration of the mutual promises of the parties, it is hereby agreed that:

1. Services. Agency hereby agrees to subscribe to Delta services on an exclusive basis pursuant to the terms and conditions described in this Agreement and as more specifically described on Schedule A incorporated herein by reference, and such other services as described in a separate schedule from time to time ("Services"). The terms of this Agreement shall apply to all Services.

2. Fees. Agency will pay Delta fees for the Services as specifically described in the separate schedules. Agency is responsible for any applicable sales tax in addition to these fees. Unless otherwise provided, all fees are due within 30 days of invoice date. Agency may arrange payment through EFT systems. Any fee not timely paid will incur a monthly service charge of 1.5% per month. In the event fees are not timely paid, Delta reserves the right to suspend Services or to stop any support and maintenance of any Services for the Agency. Delta will not begin Services until any prepayment which may be required has been received by Delta.

The parties agree that Agency will be responsible for all IDX/data acquisition fees associated with any applicable MLS, and will be responsible for the costs of any other third party services with those fees to be paid directly by Agency. Agency acknowledges that the non-payment of such third party fees may prevent Delta from performing Services for the Agency, and Agency is exclusively responsible for the timely payment of such fees.

3. Term. This Agreement shall become effective upon signing, and shall continue for an Initial Term as outlined in Schedule A from the date that Delta and Agency verifies that the website for Agency is ready for use by the Agency (“Go Live Date”). This Agreement will automatically renew for Additional Terms as outlined in Schedule A, unless either party submits a written notice 30 days prior to the renewal date of its election not to renew, with the termination to be effective at the end of the contract term. If Agency fails to timely deliver notice not to renew as provided herein, the Agreement will automatically renew for an Additional Term as outlined in Schedule A.

4. Confidential and Proprietary Information. The parties acknowledge that Delta is the exclusive owner of all software related to the Services, including, but not limited to, the design, format, and architecture of the website included in the Services. Agency is paying a service fee to use the software, and is acquiring no rights to the software. Agency agrees that it will not copy, reverse engineer, or otherwise adapt or acquire any system logic, graphics, design, technology, or format, and use such for their own behalf or for any third party. Agency acknowledges that the Services may entail some limited special design for the Agency, and those special design features will be the property of Delta, even if a separate fee is charged or paid for those Services. Upon termination for any reason, Agency shall not be entitled to use any Delta software, features or content, but may use information provided by Agency.

5. Information from Agency or Third Parties. The parties agree that Delta may rely on the accuracy of information provided to Delta from Agency, or information provided by third parties to Delta at the request of Agency. The parties agree that Delta will not independently verify the accuracy of any data provided to Delta from Agency or third parties, and that Agency is solely responsible for the contents provided to Delta.

The parties agree that any information provided to Delta from the Agency or acquired by Delta for the benefit of Agency from third parties (such as MLS), is the property of the Agency and may be used by the Agency as it directs. Agency hereby authorizes Delta to include other Agency listings on the website using information provided to Delta. Agency understands that the data is to be downloaded directly from the MLS data base, and further agrees to accept responsibility only for data provided by each respective company through the MLS system. In the event of a submission of incorrect information, or information which is deemed in violation of any law, including, but not limited to, fair housing laws, the Agency accepts responsibility for its own actions or those of their respective agents. Agency acknowledges being under contract with Delta for the provision of electronic online advertising, as well as internet advertising services.

6. Support Services & Updates. The parties acknowledge that Delta will use its best efforts to maintain the Services for Agency. Agency should report any system

problems to Delta as soon as possible. Agency acknowledges that Delta does not control search engines, third party information feeds, and other service providers which may impact optimum site performance. The parties acknowledge that despite best efforts, software and computer programs may from time to time experience difficulties, and Delta does not assure a complete and totally uninterrupted operation. Delta agrees to have personnel available for technical support and to answer questions during the hours of 8 a.m. to 8 p.m. Eastern Standard Time Monday through Friday, excluding federal holidays or emergencies when Delta is not able to be open for business. The parties anticipate that most contact and inquiries will primarily be handled through email communications and phone support will be available on a best effort basis. The parties agree that Delta will from time to time update or upgrade its software which may result in a temporary shutdown of the website, or which may change the appearance or operation of the website.

7. Limitation of Warranty & Liability. THE PARTIES ACKNOWLEDGE THAT DELTA DISCLAIMS ANY AND ALL WARRANTIES, EXPRESS OR IMPLIED, INCLUDING WARRANTIES OF FITNESS FOR PARTICULAR PURPOSE, AND DELTA SHOULD NOT BE LIABLE FOR ANY DAMAGES, INCLUDING CONSEQUENTIAL AND INCIDENTAL DAMAGES AND LOST PROFITS. THERE IS NO WARRANTY THAT THE SITE MAY NOT HAVE AN INTERRUPTION IN SERVICE AND THERE IS NO WARRANTY THAT ALL ELECTRONIC COMMUNICATIONS WILL REACH THEIR INTENDED RECIPIENTS. IN THE EVENT OF ANY ALLEGED BREACH OF THIS AGREEMENT OR ANY OTHER AGREEMENTS WITH DELTA, THE PARTIES ACKNOWLEDGE THAT DELTA'S MAXIMUM LIABILITY IS AN AMOUNT EQUAL TO THE TOTAL AMOUNT PAID BY AGENCY TO DELTA IN THE 90 DAY PERIOD IMMEDIATELY PRIOR TO THE ALLEGED BREACH OF THIS AGREEMENT. THIS LIMITATION APPLIES TO ALL CAUSES OF ACTION OF ANY TYPE OR DESCRIPTION.

8. Indemnification. Customer shall indemnify, defend and hold Delta and its affiliates and their respective directors, officers, employees and agents, harmless from and against all claims, liability, damages, costs, and attorney fees, arising from (A) any neglect or intentional acts by Agency or its agents and employees; (B) any breach or alleged breach by Agency of any terms of this Agreement; or (C) any claim that any content on the Agency websites violates any rights of any third party or causes damages to any third party. Delta agrees to cooperate with Agency in the defense of any such claims, and Delta reserves the right to engage independent counsel of its own choice, and to control the defense of any claim asserted against Delta, which defense costs will be paid by Agency as herein provided. Agency represents that it is the owner of or has a license for any material or images that Agency wants included in the website or other platforms or systems, and Agency will indemnify and hold Delta harmless from any claims of infringement or misuse of such material or images. Delta has or may elect to

register under the Digital Millennium Copyright Act and is not responsible for any content.

9. Independent Contractors. The parties agree that the relationship between each other is that of an independent contractor, and neither is an employee or agent for the other for any purpose whatsoever. Delta will have the sole control of the manner and means of the performing of its Services.

10. Confidential Information. The parties hereby acknowledge that by reason of the relationship created by this Agreement, the parties may have access to proprietary and/or confidential information related to the operations, technology or know-how of the disclosing party and its affiliates. Upon termination of this Agreement for any reason, Agency will immediately discontinue use of the website and any formatting contained therein, and further agrees to delete all Delta-created content, which Delta shall remain the exclusive owner of such content. In recognition of the relationship of the parties, each party will maintain the confidentiality of all information received from the other, which is confidential information, and other information known to them regarding the other, which is not otherwise in the public domain, and will not disclose any such information to any third party, except as required by law or required to perform the Services under this Agreement. This section shall survive the termination of this Agreement.

11. Governing Law. This Agreement shall be governed by and construed in accordance with the laws of the state of Ohio. All disputes under this Agreement shall be subject to the exclusive jurisdiction of state and federal courts having jurisdiction in Cleveland, Ohio.

In the event of a dispute between the parties, the party claiming the breach will give written notice to the other party regarding the matters in dispute. The parties will exercise their best efforts to try to reach a mutual satisfaction of the dispute. In the event, despite their best efforts, a dispute cannot be accomplished in a timely manner, the parties agree that any claims involving breach will take place in the Court of Common Pleas, Cleveland, Ohio. The parties agree to waive any rights to a trial by jury. Any claim against Delta must be asserted within 12 months or the claim shall expire.

12. Counterparts. This Agreement may be executed simultaneously in multiple counterparts, including signatures via fax, electronic or scanned signatures, all of which taken together will constitute one binding document.

13. Miscellaneous. The parties acknowledge this Agreement has been negotiated between the parties, and there shall be no presumption or conclusion against either party by virtue of that party having drafted this Agreement or any portion thereof. This Agreement and the Schedules attached hereto constitute the entire agreement

between the parties superseding all prior oral or written agreements, understandings, or the like between the parties. There are no conditions affected this Agreement which are not expressed herein. The parties agree that Delta may assign this Agreement or its obligations to a third party, provided they are responsible for the full compliance with all terms and conditions applicable to Delta.

IN WITNESS WHEREOF, the parties have entered into this Agreement on the date above first written.

Delta Media Group, Inc.

Signed by:
By: Michael R Minard
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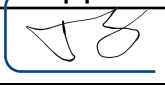
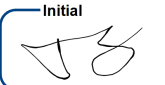
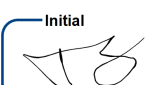
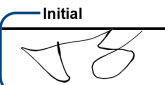
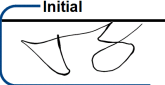
Its: CEO

Agency
Signed by:
By: [Signature]
0550957DAE8B437...

Its: owner

On behalf of Agency

SCHEDULE A
TO SERVICE AGREEMENT
DELTA MEDIA GROUP, INC. AND
GARDEN GATE REALTY

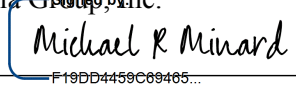
Initial As Applicable	Description of Services/Feature
	1. Setup web site and DeltaNET - Set up Fee: \$5,000 a. Due at Signing: \$2,500 b. Due at Launch: \$2,500
	2. Monthly hosting fee billed to the company will be the fees listed below with a minimum participation rate of 95% of licensed agents. Agency is responsible for all payments. a. Minimum monthly hosting fee is \$800 per month for up to 25 upgrade agents b. Any agent count above 25 will be billed at \$32 per agent c. All Team Accounts count as an upgrade agent d. An Upgrade Agent is considered a user whose account type = Agent & DN7 Package level is set to "Upgrade User" or any custom user role built off of a package type = "Upgrade User"
	3. Those services defined and described within: a. Exhibit A, the Delta Media Group Service Level Agreement, as amended from time to time by the on-line version of the Service Level Agreement. Agency shall be notified of any significant system changes as it relates to the SLA. b. Exhibit B, the Delta Media Group Platform Operating Environment, as amended from time to time by the on-line version of the Platform Operating Environment. c. Exhibit C, the Delta Media Group Technical Support document, as amended from time to time by the on-line version of the Technical Support document. d. Exhibit D, Scope of Work attached
	5. Contract Term: a. Initial Term — 12 Month initial term b. Renewals — 12 month renewal
	6. Copyrights – AGENCY is responsible for any copyright infringements incurred on photos or content they provide.
	7. AGENCY acknowledges that any changes to original quote or pre-design shall result in billable time. Current rates for changes are billed at \$150/hr for Design, Web Development and Programming.

DATED: December 6th 2024

****** Pricing valid only when agreement is signed within 10 days of date above.**

Services and terms accepted:

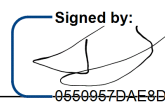
Delta Media Group, Inc.

By:  _____
F19DD4459C89485...

Its: CEO

Dated: 12/12/2024
 4845-4488-4555, v. 1

Agency:

Signed by:  _____
0660967DAE8D437...

By: owner

Dated: 12/12/2024